

36. In India, which of the following review the independent regulators in sectors like telecommunications, insurance, electricity, etc.?

1. Ad Hoc Committees set up by the Parliament
2. Parliamentary Department Related Standing Committees
3. Finance Commission
4. Financial Sector Legislative Reforms Commission
5. NITI Aayog

Select the correct answer using the code given below.

- (a) 1 and 2 (b) 1, 3 and 4
(c) 3, 4 and 5 (d) 2 and 5

I.A.S. (Pre) 2019

Ans. (a)

In India, there are 24 departments related standing committees that comprise members from both houses of parliament. These committees are specific, & may review the working of regulators within their respective departments. Parliament may also establish ad-hoc committees which may examine the working of regulators. eg. Joint parliamentary committee on the allocation of 2G spectrum includes the review of the policy on spectrum pricing & grant of telecom licenses Ad-hoc committees are temporary in nature.

Finance Commission, NITI Aayog & Financial sector legislative reforms commission has no role to play in the review of Independent regulators in various sectors.

Parliamentary Act

*The **Prevention of Food Adulteration Act** was introduced in 1954 and came into force on 15 June, 1955. *All the punishable offences under the **Protection of Civil Rights Act, 1955** are cognizable and triable summarily.

*The trials of crime under the Protection of Civil Rights Act, 1955 is done by **First Class Judicial Magistrate** and in the case of Metropolis it is done by Metropolitan Magistrate. *The **Protection of Women from Domestic Violence Act 2005** was brought into force on 26 October, 2006. *The **Criminal Tribes Act** was first enacted in 1871. *The **Scheduled Castes and The Scheduled Tribes (Prevention of Atrocities) Act, 1989** has been applicable in India since 30 January 1990. To implement the objectives of The Scheduled Castes and The Scheduled Tribes (Prevention of Atrocities) Act, 1989, the central government has the power to make law. *Section 18 of The Scheduled Castes and The Scheduled Tribes (Prevention of Atrocities) Act, 1989 prohibits anticipatory bail to the accused. *According to Rule 7 of this Act, an offence committed under this Act shall be investigated by a police officer not below the rank of Deputy Superintendent of Police. *Under section 14 of this Act the State Government for the purpose of providing

speedy trial is empowered to constitute a court of session to be a special court for each district to try the offence under the SC & ST Act. ***Hindu Marriage Act, Hindu Succession Act and The Commission of SATI (Prevention) Act** were enforced in 1955, 1956 and 1987 respectively. ***Right to Information** came fully into force on 12 October 2005. The Right to Information is a legal right. According to Supreme Court it is also a fundamental right. The use of the Right to Information Act is to obtain Information from the public authority. ***Namit sharma V/s Union of India** case is related to Right to Information Act 2005. The Mazdoor Kisan Shakti Sangathan is an Indian political organization best known for its demand for the Right to information Act. Right to Information (Amendment) Act, 2019 removed the previous provision i.e., the Chief Information Commissioner (CIC) and Information Commissioner (IC) at the Central and State levels will hold office for a term of five years and substituted it by term as may be prescribed by the Central Government. *The National Green Tribunal was established on 18 October, 2010, under the **National Green Tribunal Act, 2010**. *The provision of the **Panchayats (extension to scheduled Areas) Act, 1996 or PESA** is a law enacted by the Government of India ensuring self-governance through traditional gram sabhas for people living in the Scheduled Areas of India.

1. In which year was Prevention of Food Adulteration Act first enacted?

- (a) 1951 (b) 1954
(c) 1964 (d) 1956

U.P.P.C.S. (Mains) 2006

Ans. (b)

The Prevention of Food Adulteration Act, 1954 came into effect on 1st June, 1955.

2. All offences punishable under the Protection of Civil Rights Act, 1955 are :

- (a) Cognizable and Non-bailable
(b) Cognizable and Summarily Triable
(c) Non-cognizable and Bailable
(d) Non-cognizable and Compoundable

M.P.P.C.S. (Pre) 2012

Ans. (b)

According to Section 15 of the Protection of Civil Rights Act, 1955 all the offences punishable under the Act are cognizable and summarily Triable.

3. Offences are tried under the Protection of Civil Rights Act, 1955 by the Courts of

- (a) Sessions Court
(b) Judicial Magistrate First Class

- (c) Judicial Magistrate Second Class
- (d) Chief Judicial Magistrate

M.P.P.C.S. (Pre) 2014

Ans. (b)

The first-class Judicial Magistrates were empowered to hold special courts for the trial of offences under the Protection of Civil Rights Act, 1955. In Uttar Pradesh, in each district, the Courts of Chief Judicial Magistrates/Judicial Magistrates have been designated as a Special Court for the trial of offences under the Act.

4. All the punishable offences under the Protection of Civil Rights Act, 1955 are :

- (a) Cognizable and Triable Summarily
- (b) Cognizable and Non-Compoundable
- (c) Non-Cognizable and Bailable
- (d) Non-Cognizable and Compoundable

M.P.P.C.S. (Pre) 2019

Ans. (a) & (b)

All the punishable offences under the Protection of Civil Rights Act, 1955 are Cognizable, Triable Summarily and Non-Compoundable.

5. Under the Protection of Civil Rights Act, 1955, All offences are –

- (a) Cognizable
- (b) Bailable
- (c) Compoundable
- (d) Punishment with imprisonment and fine both

M.P.P.C.S. (Pre) 2013

Ans. (a) & (d)

Protection of Civil Rights Act, 1955 under section 15(1) provides that notwithstanding anything contained in Code of Criminal Procedure, 1973 all offences punishable under this Act shall be cognizable; section 10A(1) of this Act empowers the State Government to impose fine collectively on offenders. Apart from it, this act provides for imprisonment as well as fine to the offender as a mode of punishment. Thus both options (A) and (D) are correct. Though M.P.P.S.C. had mentioned option (c) as the correct answer in its provisional answer key, in its revised answer key bonus mark was given to all.

6. If any person refuses admission to any person to any hospital, dispensary or educational institution on the ground of untouchability, then under which section of the Protection of Civil Rights Act, 1955 he shall be punishable?

- (a) Section - 4
- (b) Section - 5
- (c) Section - 6
- (d) Section - 7

M.P.P.C.S. (Pre) 2019

Ans. (b)

Section - 5 - Whoever on the ground of 'untouchability' - refuses admission to any person to any hospital, dispensary, educational institution, if such hospital, dispensary, educational institution is established or maintained for the benefits of the general public or any section thereof shall be punishable with imprisonment for a term of not less than one month and not more than six months and also with fine which shall be not less than one hundred rupees and not more than five hundred rupees.

7. Under which one of the following Sections of the Protection of Civil Rights Act, 1955 has 'power of State Government to impose collective fine' been provided?

- (a) Section 10
- (b) Section 10 A
- (c) Section 14
- (d) Section 14 A

M.P.P.C.S. (Pre) - 2018

Ans. (b)

Under section 10A of the Protection of Civil Rights Act 1955 the power is vested in the State Government to impose collective fine.

8. The Protection of Civil Rights Act extends to:

- (a) The whole of India
- (b) The whole of India except the Scheduled areas
- (c) The whole of India except the State of Jammu and Kashmir
- (d) The whole of India except the Union Territories of Goa, Daman, and Diu

M.P.P.C.S. (Pre) 2012

Ans. (a)

According to Section 1(2) of the Protection of Civil Rights Act, 1955, it extends to the whole of India.

9. The Protection of Civil Rights Act, 1955 extends to ?

- (a) Whole of India
- (b) Whole of India except the State of Jammu and Kashmir
- (c) Union Territories
- (d) Only the State of Jammu and Kashmir

M.P.P.C.S. (Pre) - 2018

Ans. (a)

The Protection of Civil Rights Act, 1955 prescribes punishment for the (Preaching and Practice of Untouchability) enforcement of any disability arising from there and for matters connected therewith. This Act extends to the whole of India in accordance with section 1(2) of this Act.

10. Under which of the following Sections of the Protection of Civil Rights Act, 1955 has 'offences by companies' been provided?

- (a) Section 10
- (b) Section 12
- (c) Section 14
- (d) Section 16

M.P.P.C.S. (Pre) - 2018

Ans. (c)

Section 10 - Abetment of offence.

(A public servant who wilfully neglects the investigation of any offence punishable under this Act shall be deemed to have abetted an offence punishable under this Act)

Section 12 - Presumption by courts in certain cases.

(Where any act constituting an offence under this Act is committed in relation to a member of scheduled caste, the court shall presume, unless the contrary is proved, that such act was committed on the ground of untouchability.)

Section 14 - offences by companies (company means any body corporate and includes a firm or other association of individuals and directors in relation to a firm means a partner in the firm).

Section 16 - Act to override other laws.

(Save as otherwise expressly provided in this Act, the Provisions of this Act shall have effect notwithstanding anything therewith contained in any other law for the time being in force or any customs or usage or any instrument having effect under any such law or any decree or order of any Court or other authority.)

11. Who is held responsible for the offences committed by Companies, under the Protection of Civil Rights Act, 1955?

- (a) Director
- (b) Manager
- (c) Secretary
- (d) All of the above

M.P.P.C.S. (Pre) 2014

Ans. (d)

In case of any offence committed by companies under the Protection of Civil Rights Act, 1955, the person responsible for the company affairs at the time of the incident, whether Director, Manager or Secretary shall be deemed to be guilty of that offence and shall be prosecuted against and punished accordingly.

12. When the court, under section 12 of the Protection of Civil Rights Act, 1955, shall presume that the offence is committed on the ground of "untouchability"?

- (a) When it relates to member of Scheduled Castes only
- (b) When it relates to member of Scheduled Tribes only
- (c) When it relates to members of Scheduled Castes and Scheduled Tribes both
- (d) None of the above

M.P.P.C.S. (Pre) 2019

Ans. (a)

Section 12 - Presumption by courts in certain cases: Where any act constituting an offence under this act is committed in relation to a member of a scheduled caste, the court shall presume, unless the contrary is proved, that such act was committed on the ground of 'untouchability'.

13. Untouchability will not constitute an offence when -

- (a) The act of accused with regard to the enjoyment of benefit under a charitable trust created for the benefit of any section of the general public
- (b) The act of accused is with regard to the use of finery
- (c) As accused is not being competent to commit an offence
- (d) The accused and complainant victim belong to the same social group

M.P.P.C.S. (Pre) 2012

Ans. (d)

Untouchability would not constitute an offence if the accused and the victim belong to the same social group.

14. A court can presume that any act constituting offence was committed on the ground of untouchability - if such offence is committed in relation to -

- (a) a member of Scheduled Castes
- (b) a member of Scheduled Tribes
- (c) a member of any community
- (d) None of the above

M.P.P.C.S. (Pre) 2013

Ans. (a)

Section 12 of the protection of Civil Rights Act, 1955 defines that a court can presume that any act constituting an offence was committed on the ground of untouchability if such an offence is committed in relation to a member of scheduled castes.

15. Under which one of the following Sections of the Protection of Civil Rights Act, 1955 has 'protection of action taken in good faith' been provided?

- (a) Section 16 A
- (b) Section 15 A
- (c) Section 16 B
- (d) Section 14 A

M.P.P.C.S. (Pre) - 2018

Ans. (d)

Section 14 A - protection of action taken in good faith.

- (a) No suit, prosecution or other legal proceedings shall lie against the Central Government or a State Government for anything which is in good faith done or intended to be done under this Act.
- (b) No suit or other legal proceedings shall lie against the Central Government or a State Government for any damage caused or likely to be caused by anything which is in good faith done or intended to be done under this Act.

16. Which one of the following pairs is not correctly matched?

- (a) Hindu Marriage Act - 1955
- (b) Hindu Succession Act - 1956

- (c) 73rd Constitutional Amendment - Reservation of seats for women in the election of local bodies in urban areas
(d) Sati (Prevention) Act - 1987

U.P.P.C.S. (Mains) 2009

Ans. (c)

The Hindu Marriage Act was enacted in 1955, the Hindu Succession Act was enacted in 1956 and Sati (Prevention) Act was enacted in 1987. Reservation of seats for women in the election of local bodies in urban areas was made under 74th Constitutional Amendment, not by 73rd Amendment. Thus option (c) is the correct answer.

- 17. Match List-I with List-II and select the correct answer from the codes given below.**

List-I	List-II
A. Indian Arms Act	1. 1876
B. Royal Title Act	2. 1878
C. Indian High Court Act	3. 1869
D. Indian Divorce Act	4. 1861

Codes :

A	B	C	D
(a) 2	3	1	4
(b) 3	1	2	4
(c) 1	2	3	4
(d) 2	1	4	3

U.P.P.C.S. (Pre) 2020

Ans. (d)

The correct matched order is as follows:

List-I	List-II
A. Indian Arms Act	1878
B. Royal Title Act	1876
C. Indian High Court Act	1861
D. Indian Divorce Act	1869

- 18. The Protection of Women from Domestic Violence Act came into force on –**

- (a) 20th September, 2005 (b) 30th September, 2006
(c) 10th October, 2006 (d) 26th October, 2006

U.P. Lower Sub. (Mains) 2015

Ans. (d)

The Protection of Women from Domestic Violence Act, 2005 was enacted by the Parliament of India to protect women from domestic violence. It came into force on 26th October, 2006.

- 19. Which of the following is not a Social Act?**

- (a) MISA Act
(b) Anti-Dowry Act

- (c) Protection of Civil Rights Act
(d) Prevention of Immoral Traffic Act

U.P.P.C.S. (Pre) 1991

Ans. (a)

Maintenance of Internal Security Act (MISA) was enacted in 1971 and was repealed in 1977. This Act was enacted for the maintenance of internal security. Thus, it is not a Social Act, while the other three mentioned Acts were enacted for prevention of social evils.

- 20. When was the Criminal Tribes Act enacted for the first time?**

- (a) 1952 (b) 1924
(c) 1871 (d) 1911

U.P.P.C.S. (Mains) 2016

Ans. (c)

In 1871, the British Government passed an Act, commonly known as the Criminal Tribes Act. It was enacted for the first time in India and was enforced in the Northern part of India which was later extended to the region of Bengal.

- 21. The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 came into force on:**

- (a) 1st July, 1989 (b) 30th January, 1990
(c) 30th July, 1989 (d) 1st January, 1990

M.P.P.C.S. (Pre) 2019

M.P.P.C.S. (Pre) 2012

Ans. (b)

On 11 September, 1989 the President gave his consent to Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989. This Act came into force on 30 January, 1990.

- 22. Under which Act the Scheduled Caste and Scheduled Tribe Atrocity Removal Law was implemented?**

- (a) Act 1990 (b) Act 1989
(c) Act 1992 (d) Act 1991

M.P.P.C.S. (Pre) 2015

Ans. (b)

See the explanation of the above question.

- 23. How many Sections are there under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989?**

- (a) 18 (b) 22
(c) 23 (d) 27

M.P.P.C.S. (Pre) - 2018

Ans. (c)

The Scheduled Caste and Scheduled Tribes (Prevention of Atrocities) Act 1989 -

- (1) Short title, extent and commencement
- (2) Definition
- (3) Punishment for offences of atrocities.
- (4) Punishment for neglect of duties
- (5) Enhanced Punishment for subsequent conviction
- (6) Application of certain provisions of the Indian Penal Code
- (7) Forfeiture of property of certain persons
- (8) Presumption as to offences
- (9) Conferment of Powers
- (10) Removal of Person likely to commit offence
- (11) Procedure on failure of person to remove himself from the area and enter thereon after removal
- (12) Taking measurements and photographs etc of persons against whom an order under section 10 is made
- (13) Penalty for non-compliance of an order under section 10
- (14) Special Court
- (15) Special Public Prosecutor
- (16) Power of State government to impose collective fine
- (17) Preventive Action to be taken by the law and order machinery.
- (18) Section 438 of the code does not to apply to persons committing offence under the Act.
- (19) Section 360 of the code on the provisions of the Probation of offenders Act not to apply to persons guilty of an offence under the Act .
- (20) Act to override other laws.
- (21) Duty of government to ensure effective implementation of the Act.
- (22) Protection of action taken in good faith.
- (23) Power to make rules.

24. Who has/had the power to make rules for carrying out the purposes of the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989?

- (a) The State Government
- (b) The Central Government
- (c) Both (A) and (B)
- (d) The Supreme Court

M.P.P.C.S. (Pre) 2016

Ans. (b)

According to Section 23(1) of the Scheduled Caste and Scheduled Tribe (Prevention of Atrocities) Act, 1989, the Central Government may, by notification in the Official Gazette make rules for carrying out the purpose of this Act.

25. Under which Section of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 is 'economic boycott' defined ?

- (a) Section 2(b)
- (b) Section 2 (b c)
- (c) Section 2 (b f)
- (d) Section 2 (b g)

M.P.P.C.S. (Pre) 2018

Ans. (b)

Section 2 (b c) of the SC/ST (Prevention of Atrocities) Act 1989 defines economic boycotts.

26. Offence committed by any public servant under Section 3 of the SC and ST (Prevention of Atrocities) Act, 1989, provides for minimum punishment of

- (a) Three months
- (b) Six months
- (c) One year
- (d) None of the above

M.P.P.C.S. (Pre) 2014

Ans. (c)

Whoever being a public servant, commits any offence under section 3, of the SCs and STs (Prevention of Atrocities) Act, 1989 shall be punishable with imprisonment for a term which shall not be less than one year.

27. Under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, in which section there is a provision for the arrangement of a special court?

- (a) 14
- (b) 17
- (c) 21(1)
- (d) 21(3)

M.P.P.C.S. (Pre) 2017

Ans. (a)

Section 14 of the Scheduled Caste and Scheduled Tribes (Prevention of Atrocities) Act, 1989 provides for the arrangement of a special court and an Exclusive special court for the purpose of providing for a speedy trial. Section 15 provides for special public prosecutor and exclusive public Prosecutor.

28. The State Government can specify a Court of Session to be a Special Court to try the offences under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 with the concurrence of the—

- (a) Governor
- (b) Chief Justice of High Court
- (c) Session Judge of concerned district
- (d) Ministry of Law

M.P.P.C.S. (Pre) 2013

Ans. (b)

Section 14 of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 made provisions for the purpose of providing a speedy trial. The State Government shall, with the concurrence of the Chief Justice of the High Court, by notification in the Official Gazette, specify for each district a Court of Session to be a Special Court to try the offences under this Act.

29. A Court of Session specified as Special Court to try the offences under the Scheduled Castes, and Scheduled Tribes (Prevention of Atrocities) Act for the purpose of providing –

- (a) Speedy trial
- (b) Time-bound trial
- (c) Special protection to victims
- (d) All of the above

M.P.P.C.S. (Pre) 2012

Ans. (a)

A Court of Session has been specified as a Special Court to try the offences under Section 14 of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 for the purpose of providing a speedy trial.

30. An appeal under Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 shall lie from any judgement, sentence or order to the High Court.

- (a) Only on facts
- (b) Only on law
- (c) Both on facts and law
- (d) None of the above

M.P.P.C.S. (Pre) 2019

Ans. (c)

An appeal under Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 shall lie from any judgement, sentence or order to the High Court on facts and laws.

31. The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act is a special provision for the advancement of Scheduled Castes and Scheduled Tribes which is based on which one of the following doctrines?

- (a) Doctrine of Severability
- (b) Doctrine of Preferred Position
- (c) Doctrine of Protective discrimination
- (d) Doctrine of Harmonious Construction

M.P.P.C.S. (Pre) 2012

Ans. (c)

Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 is based on the Doctrine of Protective Discrimination'. This Act is based on the implementation of the system under Article 15(4) of the Indian Constitution. This Article prohibits the discrimination of people on the grounds of religion, race, caste, sex or place of birth.

32. Who is empowered for imposition and realization of a collective fine under SC and ST (Prevention of Atrocities) Act, 1989?

- (a) District Magistrate
- (b) State Government
- (c) Special Court
- (d) High Court

M.P.P.C.S. (Pre) 2014

Ans. (b)

The power of imposition and realization of collective fine and for all other matters connected in addition to that under Sec. 16 of SC's and ST's Act, 1989 is vested in the State Government.

33. In a prosecution for an offence under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, the court can presume which of the following?

- (a) Abetment
- (b) Common Intention
- (c) Common Object
- (d) All of the above

M.P.P.C.S. (Pre) 2013

Ans. (d)

The court may presume abetment, common intention and common object in a prosecution for an offence under Section 8 of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989.

34. Which of the following Sections of the Scheduled Castes and the Scheduled Tribes Act, 1989 provides for application of certain provisions of the Indian Penal Code?

- (a) Section 12
- (b) Section 10
- (c) Section 6
- (d) Section 8

M.P.P.C.S. (Pre) 2016

Ans. (c)

Section 6 of Schedule Castes and Scheduled Tribes Act, 1989 provide application of Section 34, Chapter 3, Chapter 4, Chapter 5, Chapter 5-A, Section 149 and Chapter 23 of Indian Penal Code.

35. In how many days will the investigation officer submit his report for the offences committed under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989?

- (a) 15 (b) 20
(c) 25 (d) 30

M.P.P.C.S. (Pre) 2017

Ans. (*)

According to the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Rules, 1995 the investigating officer shall complete the investigation on top priority within thirty days and submit the report to the Superintendent of Police. But this provision has been changed through the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Amendment Rules, 2016. As per this rule the investigating officer shall complete the investigation on top priority, and submit the report to the Superintendent of Police, who in turn shall immediately forward the report to the DGP or Commissioner of Police of the state government and the office in-charge of the concerned Police station shall file the charge-sheet in the special court within a period of sixty days (the period is inclusive of investigation and filing of charge-sheet).

Note : According to the commission the correct option is (d), which is wrong as per the amendment rule, 2016.

36. Under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, which of the following is barred ?

- (a) Anticipatory Bail
(b) Post-arrest bail
(c) Benefit of probation
(d) All of the above

M.P.P.C.S. (Pre) 2013

Ans. (a)

The Anticipatory Bail is barred under the Scheduled Castes and Scheduled Tribes ((Prevention of Atrocities) Act, 1989.

37. Under which of the following Sections of the Scheduled Castes and Scheduled Tribes Act, 1989 is anticipatory bail prohibited?

- (a) Section 16 (b) Section 17
(c) Section 18 (d) Section 19

M.P.P.C.S. (Pre) 2016

M.P. P.C.S. (Pre) 2018

Ans. (c)

According to Section 18 of the Scheduled Caste and Schedule Tribes Act, 1989, "Nothing in section 438 (Anticipatory Bail) shall apply in relation to any case involving the arrest of any person on an accusation of having committed an offence under this Act."

38. An offence committed under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 shall be investigated by a police officer, not below the rank of –

- (a) Sub-Inspector (b) Inspector
(c) Deputy-Superintendent (d) Superintendent

M.P.P.C.S. (Pre) 2013

Ans. (c)

Under the rules framed by the central government in 1995 for the implementing of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, an offence committed under this Act shall be investigated by a Police Officer, not below the rank of Deputy Superintendent.

39. Which of the following powers is not provided to specified Special Court under Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act?

- (a) Forfeiture of property of a convict for an offence.
(b) To authorize a person for extra investigation other than police.
(c) To remove a person from the area who is suspected of committing a crime.
(d) Take measurement and photograph of a person who is suspected of committing a crime.

M.P.P.C.S. (Pre) 2012

Ans. (b)

In the given options, the power to authorize a person for extra investigation other than police is not provided to a specified Special Court under Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989.

40. Which of the following powers a Special Court cannot exercise under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989?

- (a) To remove a person
(b) To forfeit the property
(c) To take measurement of a person
(d) To impose collective fine

M.P.P.C.S. (Pre) 2013

Ans. (d)

The Special Court cannot exercise power to impose collective fines under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989.

41. In a prosecution for an offence under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, the accused in his defence cannot take the plea that -

- (a) The Act was done in exercise of the right of private defence.
- (b) He also belongs to the caste as that of the victim.
- (c) The Act causes such a slight harm which could not be a subject of the complaint.
- (d) None of the above.

M.P.P.C.S. (Pre) 2013

Ans. (*)

In a prosecution for an offence under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 the accused in his defence can take the plea that he also belongs to the caste as that of the victim. But he cannot accept a plea on the basis of the reason mentioned in (a) and (c). Thus both the answers (a) and (c) of this question are correct. According to this Act, the prosecution can be pursued on the accused if he/she does not belong to SC/ST caste. M.P.P.S.C provided bonus marks to all the candidates as it mentioned more than one answer in its revised answer-key.

42. Under the Scheduled caste and Scheduled Tribes (Prevention of Atrocities) Act, 1989, whoever, not being a member of a Scheduled caste or a Scheduled Tribe, causes physical harm or mental agony of a member of a Scheduled Caste or a Scheduled Tribe on the allegation of practising witchcraft or being a witch shall be punishable

- (a) with imprisonment for a term which shall not be less than six months but which may extend to five years and with fine
- (b) with imprisonment for a term which shall not be less than six months and with fine
- (c) with imprisonment for a term which shall be one year and with fine
- (d) with imprisonment for term which shall be five years and with fine

M.P.P.C.S. (Pre) - 2018

Ans. (a)

Under the Scheduled Caste and Scheduled Tribes (Prevention of Atrocities) / Act 1989, whoever, not being a member of a Scheduled Caste or a Scheduled Tribe, causes physical harm or mental agony of a member of a Scheduled Caste or a Scheduled Tribe on the allegation of practising witchcraft or being a witch shall be punishable with imprisonment for a term which shall not be less than 6 months but which may extend to 5 years and with fine.

43. Which of the following statement is incorrect?

- (a) Offences, under Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, are committed by a person who is not a member of Scheduled Caste or Scheduled Tribe
- (b) "Exclusive Special Court" established under Section 14 (1) of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act is defined under section 2(d)
- (c) "Victim" is defined under section 2(ec) of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act
- (d) "Dependent" is defined under Section 2(bb) of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act

M.P.P.C.S. (Pre) 2019

Ans. (b)

"Exclusive Special Court" means the Exclusive special court established under the sub-section (1) of section 14 exclusively to try the offences under The Scheduled Castes and The Scheduled Tribes (Prevention of Atrocities) Act, 1989, as defined under section 2(1) (bd) of the Act. All other options are correct.

44. Under which one of the following Sections of the Scheduled Castes and the Scheduled Tribes Rules, 1995, Constitution of 'District Level Vigilance and Monitoring Committee' has been provided?

- (a) Section 18
- (b) Section 19
- (c) Section 17
- (d) Section 16

M.P.P.C.S. (Pre) 2016

Ans. (c)

According to Section 17 of The Scheduled Castes and The Scheduled Tribes (Prevention of Atrocities) Rules, 1995, there will be the constitution of district level vigilance and monitoring committee in each district by District Magistrate to review the implementation of the provision of this Act.

45. Under which one of the following Sections of the Scheduled Tribes Rules, 1995 has 'Material for Annual Report' been provided?

- (a) Section 18
- (b) Section 20
- (c) Section 22
- (d) Section 24

M.P.P.C.S. (Pre) 2018

Ans. (a)

Under section 18 of SC/ST Act 1995 'Material for Annual Report' has been provided.

46. The Right to Information Act of Parliament received the assent of the President of India on –

- (a) 15th May, 2005 (b) 5th June, 2005
(c) 15th June, 2005 (d) 12th October, 2005

U.P.P.C.S.(Pre) 2013

Ans. (c)

The Right to Information Act was passed on 11 May, 2005 by the Lok Sabha and on 12 May, 2005 by the Rajya Sabha and received the Permission of the then President late Dr. A.P.J. Abdul Kalam on June 15, 2005. It came into force after 120 days on (12-13 midnight) October 12, 2005.

47. Right to Information Act was passed in the year–

- (a) 2001 (b) 2004
(c) 2005 (d) 2002

U.P.P.C.S. (Mains) 2013

Ans. (c)

See the explanation of the above question.

48. Which one of the following statements is true about right to information?

- (a) It is a political right
(b) It is a constitutional right
(c) It is a legal right
(d) It is a social right

U.P.P.C.S. (Pre) 2015

Ans. (c)

See the explanation of the above question.

49. The Right to Information is –

- (a) A Fundamental Right
(b) A Legal Right
(c) Both (a) and (b)
(d) Neither (a) nor (b)

U.P. U.D.A./L.D.A. (Spl) (Pre) 2010

Ans. (c)

The Right to Information Act 2005, mandates timely response to citizen's requests for government information. It is a legal right. The Primary object of the Right to Information Act is to empower the citizens, promote transparency and accountability in the working of the Government, prevent corruption, and make our democracy work for the people in real sense.

In many of its decisions the supreme court mentioned that the freedom of thought and expression also includes the right to information. However, the Right to Information is not clearly mentioned in the Indian Constitution. Thus the correct answer is an option (c).

50. Which of the following terminology is/are mentioned in the Preamble of the Right to Information Act, 2005?

- (A) Transparency of Information
(B) Revelation of Information
(C) Informed Citizenry
(D) Paramountcy of the democratic ideal

Select the correct answer using code given below:

Codes:

- (a) (A) only (b) (A) and (B)
(c) (A), (B) and (C) (d) (A), (B), (C) and (D)

R.A.S/R.T.S (Pre) 2018

Ans. (d)

Preamble of RTI Act 2005-

Para I - "And whereas Democracy requires informed citizens and transparency of information which are usual to its functioning and also to contain corruption and to hold Governments and their instruments accountable to the governed."

Para II - "And whereas revelation of information in actual practise confidentiality of sensitive information "

Para II - (2nd line) "And whereas it is necessary to harmonise these conflicting interests while preserving the Paramountcy of the democratic ideal."

51. Which of the following is not true about the objectives of the Right to Information Act?

- (a) To promote transparency and accountability in the working of the government
(b) To make our democracy work for the people in real sense
(c) To empower the women and weaker sections of the society
(d) To empower citizens

R.A.S./R.T.S. (Pre) 2021

Ans. (c)

The Right to Information Act, 2005, is an act to provide for setting out the practical regime of the right to information for citizens to secure access to information under the control of public authorities, in order to promote transparency and accountability in the working of every public authority.

The basic object of the Right to Information Act is to empower the citizens, promote transparency and accountability in the working of the Government, tackle corruption, and make our democracy work for the people in a real sense. It goes without saying that an informed citizen is better equipped to keep necessary vigil on the instruments of governance and make the government more accountable to the governed. The Act is a big step towards making the citizens informed about the activities of the Government.

Hence, statement (3) is not true about RTI Act. It is essential to mention here that the Right to Information Act, 2005, was amended in 2019.

52. Consider the following statements about the 'Right to Information (RTI) Act, 2005' and select one which has not been provided for or is specially exempted –

- (a) It is not applicable in the State of Jammu and Kashmir.
- (b) An applicant making request for information will have to give reasons for seeking information.
- (c) Removal of Chief Information Commissioner.
- (d) Every Information Commissioner shall hold office for a term of 5 years or until the age of 65 years, whichever is earlier.

U.P.P.C.S. (Pre) 2006

Ans. (*)

During the time when this was asked, the Right to Information Act, 2005 had all the Provisions except the one provided in option (b). Explanation of option (b) is as follows – According to sub-section-2 of section -6 of chapter-2 of the Right to Information Act, 2005, an applicant requesting information will not be needed to give any reason or any other personal details to request information except those required to contact him.

It is noteworthy that under 'The Right to Information (Amendment) Act, 2019 the tenure of the Central Chief Information Commissioner and each Information commissioner and the State Chief Information Commissioner have and each Information Commissioner have been prescribed by the Central Government in place of 5 year from the date of Joining. Apart from this, according to the notification issued by the President on 6th August, 2019 on the recommendation of the Parliament, the special status received by Jammu and Kashmir under Article 370 has been abolished. Hence, the Right to Information Act, 2005 is in force both in the union territory of Jammu and Kashmir and the union territory of Ladakh.

53. Which of the following sections of the Right to Information Act is not related to the functions and powers of the Central Information Commission?

- (a) 25
- (b) 19
- (c) 18
- (d) 12
- (e) Question not attempted

Raj. P.C.S. (Pre) 2023

Ans. (d)

The Right to Information Act (RTI) was passed in 2005 to give Indian citizens the right to request information from public authorities. In 1976, in the Raj Narain Vs. The State of Uttar Pradesh case, the Supreme Court ruled that the Right to information will be treated as a fundamental right under Article 19. The objectives of this act are to empower

Citizens to question the government and promote transparency and accountability. Section 18 of the Right to Information Act, 2005, states the powers and functions of Information Commissions, Section 19 of the Act makes provision for appeal and Section 25 provides the Central Information Commission or State Information Commission, as the case may be, shall, prepare a report on the implementation of the provisions of this Act. However, section 12 is related to the constitution of the Central Information Commission.

54. Who among the following can impose the penalty under Section 20 of Right to Information Act?

- (a) Central Information Commission only
- (b) State Information Commission only
- (c) Central Information Commission or State Information Commission
- (d) High Court or Central Information Commission or State Information Commission

M.P.P.C.S. (Pre), 2021

Ans. (c)

Central Information Commission or State Information Commission can impose the penalty under Section 20 of Right to Information Act.

55. In which year the Central Information Commission was established?

- (a) 2005
- (b) 2006
- (c) 2007
- (d) 2008

Uttarakhand P.C.S. (Pre) 2021

Ans. (a)

The Central Information Commission has been constituted with effect from 12-10-2005 under the Right to Information Act, 2005. The jurisdiction of the commission extends over all Central Public Authorities. The Commission has certain powers and functions mentioned in Sections 18, 19, 20 and 25 of the RTI Act, 2005.

56. The tenure of Central Information Commissioner is

- (a) 6 years or 65 years of age
- (b) 6 years or 62 years of age
- (c) 5 years or 62 years of age
- (d) 5 years or 65 years of age

R.A.S./R.T.S. (Pre) 2016

Ans. (*)

According to the Right to Information (Amendment) Act, 2019, the tenure of the Chief Information Commissioner (CIC) and Information commissioners (IC's) shall be notified by the Government of India. Now it is 3 years or 65 years of age.

57. State information Commissioner is appointed by the Governor on the recommendation of a committee. Who of the following is not a member of this Committee?

- (a) The Chief Minister
- (b) The Leader of opposition in Legislative Assembly
- (c) A cabinet minister to be nominated by the Chief Minister
- (d) Chief Justice of Hight Court
- (e) Question not attempted

Raj. P.C.S. (Pre) 2024

Ans. (d)

According to the Section 15(3) of the Right to Information Act, 2005, the State Chief Information Commissioner and the State Information Commissioners shall be appointed by the Governor on the recommendation of a committee consisting of-

- (i) Chief Minister, as the Chairperson,
 - (ii) The Header of Opposition in Legislative Assembly; and
 - (iii) a Cabinet Minister to be nominated by the Chief Minister.
- Therefore, the Chief Justice of High Court is not a member of the committee. Hence, option (d) is the correct answer.

58. Who among the following cannot be the State Chief Information Commissioner or State Information Commissioner?

- (a) Person from field of Journalism
- (b) Person from Legal field
- (c) Person in the field of Science and Technology
- (d) Member of the Legislature of the State territory

M.P.P.C.S. (Pre.) 2022

Ans. (d)

The Right to Information Act of 2005 provides for creating of the Central Information Commission and a State Information Commission at the state level. The Commission consists of a State Chief Information Commissioner and not more than ten State Information Commissioners. They should be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service management, journalism, mass media or administration and governance. They should not be a Member of Parliament or Member of the Legislature of any State or Union Territory.

59. Mazdoor Kisan Shakti Sangathan (MKSS), a Social Movement has been associated with which of the following in India?

- (a) RTE Act
- (b) RTI Act
- (c) MGNREGA
- (d) National Health Mission (NHM)

U.P.P.C.S. (Pre) 2019

Ans. (b)

Mazdoor Kisan Shakti Sangathan (MKSS) was founded in 1990 by social activists Aruna Roy, Nikhil Dey, Shankar Singh etc. This organisation is known for its association with the people's movement demanding the Right to Information. People's movement demanding the right to information is considered to have started in the year 1990 when MKSS demanded the data regarding famine relief works and the wages of the workers. The organisation also played an important role in bringing the Right to Information Act.

60. Which of the following is related to Right to Information Act, 2005?

- (a) Lily Thomas v/s Union of India
- (b) Nandini Sundar v/s State of Chhattisgarh
- (c) Namit Sharma v/s Union of India
- (d) None of the above

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (c)

Namit Sharma Vs. Union of India, 2012 case is related to the Right to Information Act, 2005.

61. Consider the following statements:

Assertion (A) : The Right to Information Act has in general been responsible for increasing the sense of responsibility in bureaucracy.

Reason (R) : It still has miles to go to create the desired impact.

Select the correct answer from the code given below : Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P. U.D.A./L.D.A. (Mains) 2010

Ans. (b)

The Right to Information Act, 2005 has in general been responsible for increasing the sense of responsibility in bureaucracy but it still has miles to go to create the desired impact. Thus both (A) and (R) are individually true but (R) is not the correct explanation of (A).

62. The objective of Right to Information Act is to –

- (a) Secure access to information from public authorities.
- (b) Provide information to the public by a person who has the information.
- (c) Provide information by Government on a public place.
- (d) Secure information by police from culprits.

R.A.S./R.T.S. (Pre) 2007

Ans. (a)

According to Section 2 of the Right to Information Act, 2005 the 'Right to Information' means access to information controlled by public officials. Under the Right to Information records, documents and works can be inspected and a sample of the material can be taken. The Right to Information Act was passed on 11 May, 2005 by the Lok Sabha and on 12 May, 2005 by Rajya Sabha.

63. Which High Court has said in its important decision that "the R.T.I. applicant should tell the reason for asking information under Right to Information"?

- (a) Calcutta High Court
- (b) Bombay High Court
- (c) Allahabad High Court
- (d) Madras High Court

U.P.P.S.C. (R.I.) 2014

Ans. (d)

A division bench of Madras High Court comprising Justices N. Paul Vasanthakumar and K. Ravichandrababu said "an applicant must disclose the object for which the information is sought and also satisfy that such object has a legal backing," a decision which may have far-reaching implications on getting information under the RTI Act. But any such obligations are not mentioned in Right to Information Act, 2005.

64. Which one of the following is not basic element of the citizen charter?

- (a) Description of services being provided by department of the agency
- (b) Promotion of various methods to get benefit from the services available
- (c) To expect any public record
- (d) Provision for the inspection of the agency's work

R.A.S./R.T.S. (Pre) 2021

Ans. (d)

The nine basic elements of the Citizen Charter are-

- Set standards of service.
- Be open and provide full information.
- Consult and involve.
- Encourage access and the promotion of choice.
- Treat all fairly.

- Put things right when they go wrong.
- Use resources effectively.
- Innovate and improve.
- Work with other providers.

Hence option (4) is the correct answer.

65. At the national level, which ministry is the nodal agency to ensure effective implementation of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006?

- (a) Ministry of Environment, Forest & Climate Change
- (b) Ministry of Panchayati Raj
- (c) Ministry of Rural Development
- (d) Ministry of Tribal Affairs

I.A.S. (Pre) 2021

Ans. (d)

The Ministry of the Central Government dealing with Tribal Affairs or any officer or authority authorized by the Central Government on this behalf shall be the nodal agency for the implementation (Act. 12) of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006.

In the performance of its duties and exercise of its powers by or under this Act, every authority referred to in Chapter IV shall be subject to such general or Particular directions, as the Central Government may, from time to time, give in writing.

66. Under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, who shall be the authority to initiate the process for determining the nature and extent of individual or community forest rights or both?

- (a) State Forest Department
- (b) District Collector/Deputy Commissioner
- (c) Tahsildar/Block Development Officer/Mandal Revenue Officer
- (d) Gram Sabha

I.A.S. (Pre) 2013

Ans. (d)

Under Section 6(1) of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, the Gram Sabha has been given the authority to initiate the process for determining the nature and extent of these rights. After that, it is enquired at the Tehsil and District level.

67. The National Green Tribunal Act, 2010 was enacted in consonance with which of the following provisions of the Constitution of India?

1. The right to a healthy environment, construed as a part of Right to life under Article 21.

2. **Provision of grants for raising the level of administration in the Scheduled Tribes under Article 275(1).**

3. **Power and functions of Gram Sabha as mentioned under Article 243(A).**

Select the correct answer using the code given below :

- (a) 1 only (b) 2 and 3 only
(c) 1 and 3 only (d) 1, 2 and 3

I.A.S. (Pre) 2012

Ans. (a)

The National Green Tribunal Act, 2010 was enacted in accordance with the right to a healthy environment, construed as a part of the Right to Life under Article 21 of the Constitution of India. By this Act, the National Green Tribunal was established on 18.10.2010 in the country.

68. **National Green Tribunal (NGT) was established by the Government of India in :**

- (a) 2007 (b) 2008
(c) 2009 (d) 2010

U.P. R.O./A.R.O. (Pre) (Re-Exam) 2016

Ans. (d)

See the explanation of the above question.

69. **Within how many days, an appeal can be made by an aggrieved person by decision of the National Green Tribunal to the Supreme Court?**

- (a) Thirty days (b) Forty-five days
(c) Sixty days (d) Ninety days

M.P.P.C.S. (Pre) 2020

Ans. (d)

The National Green Tribunal was established on 18.10.2010 under the National Green Tribunal Act 2010 for effective and expeditious disposal of cases relating to the environmental protection and conservation of forests and other natural resources including enforcement of any legal right relating to environment and giving relief and compensation for damages to persons and property and for matters connected therewith or incidental to it. It is a specialized body equipped with the necessary expertise to handle environmental disputes involving multi-disciplinary issues. The Tribunal shall not be bound by the procedure laid down under the Code of Civil Procedure, 1908, but shall be guided by principles of natural justice.

The Tribunal has powers to review its own decisions. If this fails, the decision can be challenged before the Supreme Court within ninety days.

70. **Which one of the following statements with respect to the Land Acquisition Act, 1894 is not true?**

- (a) It was made by the British rulers
(b) Its purpose was to help the process of land reforms in India

(c) It has been replaced by another Act of India's Parliament

(d) Its implementation had become disputed

M.P.P.C.S. (Pre) 2016

Ans. (b)

The Land Acquisition Act, 1894 was enacted by British rulers, which came into effect on 1 March, 1894. Its purpose was not to promote the land reform process in India, but to make laws for land acquisition for public institutions, organizations and companies. This Act have been replaced by 'The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.'

71. **Which of the following labour related Acts have been amalgamated into the 'Code on Wages, 2019'?**

I. Minimum Wages Act

II. Payment of Bonus Act

III. The Contract Labour Act

IV. Equal Remuneration Act

Select the correct answer using the codes given below.

Codes:

- (a) I and II only (b) II and III only
(c) I, II and IV only (d) I, II, III and IV

U.P.P.C.S. (Pre) 2021

Ans. (c)

The Code on Wages, 2019 replaces the following four laws:

- (i) The Payment of Wages Act, 1936,
(ii) The Minimum Wages Act, 1948,
(iii) The Payment of Bonus Act, 1965, and
(iv) The Equal Remuneration Act, 1976.

72. **Which of the following is not correctly matched?**

- (a) Companies Act – 2013
(b) Indian Contract Act – 1870
(c) Partnership Act – 1932
(d) Sale of Goods Act – 1930

U.P.R.O./A.R.O. (Pre) 2021

Ans. (b)

The correct Matched order is as follows:

List-I	List-II
(a) Companies Act	2013
(b) Indian Contract Act	1872
(c) Partnership Act	1932
(d) Sale of Goods Act	1930

73. Which one of the following is NOT correctly matched?

- | Acts | Year |
|--|--------|
| (a) Prevention of Seditious Meetings Act | - 1908 |
| (b) Explosive Substances Act | - 1908 |
| (c) Indian Criminal Law Amendment Act | - 1908 |
| (d) Newspaper (Incentive to Offence) Act | - 1908 |

U.P. R.O./A.R.O. (Pre) (Re-Exam) 2016

Ans. (a)

The Act for Preventing seditious meetings was brought in the year 1907, while the remaining Acts given in the option are correctly matched.

74. Arrange the following Acts in their chronological order and select the correct answer from the code given below:

I. Lex-Loci Act

II. Bengal Tenancy Act

III. Age of Consent Act

IV. Indian University Act

Code-

- | | |
|-----------------------|-----------------------|
| (a) I, III, II and IV | (b) IV, I, II and III |
| (c) I, IV, II and III | (d) I, II, III and IV |

UP R.O./A.R.O. (Pre) 2023

Ans. (d)

- The Lex- Loci Act of 1850 allowed a Hindu, who had converted to a different faith, to inherit his ancestral property.
- The Bengal Tenancy Act 1885 was an enactment of the Bengal government. It defines the rights of zamindars, land-lords and their tenants in response to a widespread peasant revolt.
- The Age of Consent Act, 1891 was a legislation enacted in British India in 1891.
- Indian University Act was enacted in 1907.

75. With reference to India, consider the following pairs :

- | Action | The Act under which it is covered |
|---|-----------------------------------|
| 1. Unauthorized wearing of police or military uniforms | The Official Secrets Act, 1923 |
| 2. Knowingly misleading or otherwise interfering with a police officer or military officer when engaged in their duties | The Indian Evidence Act, 1872 |

3. Celebratory gunfire : The Arms (Amendment) which can endanger the personal safety of others

How many of the above pairs are correctly matched?

- | | |
|---------------|--------------|
| (a) Only one | (b) Only two |
| (c) All three | (d) None |

I.A.S. (Pre.) 2023

Ans. (b)

Section 6 of the Official Secrets Act 1923 makes provisions regarding the unauthorized use of uniforms, falsification of reports, forgery, personation, and false documents. It clearly states that if any person is found to be unauthorizedly using the police or military uniforms, they will be held guilty of an offence under this section. Section 7 of the Official Secrets Act, 1923 clearly states that no person in the vicinity of any prohibited place shall obstruct, knowingly mislead or otherwise interfere with or impede, any police officer, or any member of (the Armed Forces of the Union) engaged on guard, sentry, patrol, or other similar duty concerning the prohibited place. Hence Pair 1 is correct but Pair 2 is incorrect. The Arms (Amendment) Act, 2019 punishes whoever uses firearm in a rash or negligent manner or in celebratory gunfire so as to endanger human life or personal safety of others. Hence Pair 3 is correct.

76. The Disaster Management Act was made in -

- | | |
|----------|----------|
| (a) 2006 | (b) 2003 |
| (c) 2005 | (d) 2009 |

M.P.P.C.S. (Pre) 2020

Ans. (c)

The Disaster Management Act was passed by the Parliament of India in 2005 for efficient management of disasters. The act contains 11 chapters and 79 sections. The act received the assent of the president of India on 23, December 2005

77. The Disaster Management Act was passed by the Parliament of India in -

- | | |
|----------|----------|
| (a) 2001 | (b) 2005 |
| (c) 2009 | (d) 2013 |

U.P.R.O./A.R.O. (Pre) 2021

Ans. (b)

See the explanation of the above question.

78. The National Disaster Management Division in India is the nodal division in the Ministry of Home Affairs for disaster management. Who is the Ex-officio Chairman of the National Disaster Management Authority?

- | |
|------------------------|
| (a) The Prime Minister |
| (b) The Home Minister |

- (c) The Defence Minister
(d) The Health and Family Welfare Minister

U.P.P.C.S. (Pre) 2021

Ans. (a)

- The National Disaster Management Authority (NDMA), headed by the Prime Minister of India.
- On 23 December 2005, the Government of India enacted the Disaster Management Act, which envisaged the creation of the National Disaster Management Authority (NDMA).
- The NDMA may have no more than nine members including a Vice-Chairperson.
- The tenure of the members of the NDMA shall be five years.

79. Which of the following gave legal basis to extraordinary powers exercised by the Government of India during Lockdown?

1. Mental Health Care Act, 2017
2. Disaster Management Act, 2005
3. Enemy Property Act, 1968
4. Epidemic Diseases Act, 1897

Select the correct answer from the codes given below.

Codes :

- (a) 1, 2 and 3 (b) 2, 3 and 4
(c) 2 and 4 (d) 1, 3 and 4

U.P. P.C.S. (Pre) 2020

Ans. (c)

A 123-year-old law has come to the rescue of the government in its effort to tackle the Covid-19 challenge. On March 11, 2020, the central government advised all States and Union Territories to invoke Provisions of Section 2 of the Epidemic Diseases Act, 1897. The decision aimed to ensure that all advisories of the Union Health Ministry and State governments on the COVID-19 crisis were enforced. Besides this, the government also invoked the Disaster Management Act, 2005 to enforce the 21-day nationwide lockdown that started at midnight on 23 March, 2020. Thus, both Acts gave a legal basis to extraordinary Powers exercised by the Government of India during the Lockdown.

80. The government of India enacted the Forest Conservation Act in the year :

- (a) 1976 (b) 1980
(c) 1983 (d) 1988

U.P.P.C.S. (Pre) 2017

Ans. (b)

The government of India enacted the Forest Conservation Act - 1980. It became effective on 25 October, 1980.

81. The Biological Diversity (Amendment) Act, 2023 Published in the Gazette of India by the Ministry of Law and Justice, Government of India, was published on which date?

- (a) 13th June (b) 03rd July
(c) 03rd August (d) 13th September

M.P.P.C.S. (Pre) 2025

Ans. (c)

The Biological Diversity (Amendment) Act, 2023, was published in the Official Gazette on August 3, 2023, after receiving the President's assent on the same day. This Act introduces several key changes to the Biological Diversity Act, 2002. It decriminalizes violations of the National Biological Diversity Act and replaces imprisonment with civil penalties. Additionally, it provides relief to Indian entities in securing their intellectual property rights. The Act also exempts AYUSH practitioners and traditional knowledge holders from the requirement of paying Access and Benefit Sharing (ABS) fees. Significantly, The Biological Diversity Act of 2002 came into force in India on October 1, 2003 and July 1, 2004. The Act was passed by the Parliament of India to meet the obligations of the United Nations Convention on Biological Diversity (CBD).

82. Consider the following statements :

Once the Central Government notifies an area as a 'Community Reserve'

1. The Chief Wildlife Warden of the State becomes the governing authority of such forest
2. Hunting is not allowed in such area
3. People of such area are allowed to collect non-timber forest produce
4. People of such area are allowed traditional agricultural practices

How many of the above statements are correct?

- (a) Only one (b) Only two
(c) Only three (d) All four

U.P.S.C. (Pre) 2023

Ans. (b)

Statement 1 : Once the Central Government notifies an area as a 'Community Reserve', the Chief Wildlife Warden of the State becomes the governing authority of such forest. Incorrect. According to Section 36C of the Wildlife (Protection) Act, 1972, the State government, not the Central Government, has the authority to declare an area as a Community Reserve. Furthermore, Section 36D specifies that the management of such reserves is entrusted to a Community Reserve Management Committee, not the Chief Wildlife Warden.

Statement 2 : Hunting is not allowed in such area.

Correct. The Wildlife (Protection) Act, 1972, prohibits hunting in protected areas, including community Reserves, to ensure the protection of wildlife.

Statement 3 : People of such area are allowed to collect non-timber forest produce.

Correct. Community reserves aim to involve local communities in conservation efforts. While the Act does not explicitly mention the collection of non-timber forest produce (NTFP), sustainable use of resources by local communities is generally permitted under the supervision of the community Reserve Management Committee.

Statement 4 : People of such area are allowed traditional agricultural practices.

Incorrect. Traditional agricultural practices, especially those that may alter the habitat, are typically restricted within community Reserves to maintain the area's conservation objectives. The Act emphasizes protecting flora, fauna and traditional conservation values, which may limit certain land-use practices.

Hence correct answer in option (6).

83. Government of India has passed 'Protection of Plant Varieties and Farmers Right Act' in which of the following year?

- (a) 2001 (b) 2005
(c) 2015 (d) None of the above

U.P.R.O./A.R.O. (Mains) 2021

Ans. (a)

The government of India has passed 'Protection of Plant Varieties and Farmer's Right Act' in 2001. It was enacted in 2001 to establish an effective system for the protection of plant varieties, the rights of farmers and plant breeders and to encourage the development of new varieties of plants.

84. Consider the following statements :

1. Aadhaar metadata cannot be stored for more than three months.
2. State cannot enter into any contract with private corporations for sharing of Aadhaar data.
3. Aadhaar is mandatory for obtaining insurance products.
4. Aadhaar is mandatory for getting benefits funded out of the Consolidated Fund of India.

Which of the statements given above is/are correct?

- (a) 1 and 4 only (b) 2 and 4 only
(c) 3 only (d) 1, 2 and 3 only

I.A.S. (Pre) 2020

Ans. (b)

Supreme Court had ruled that Aadhaar authentication data of citizens cannot be retained beyond 6 months. Hence, statement 1 is wrong. In the Aadhaar case, Supreme Court upheld the constitutionality of the Aadhaar Act, 2016 barring a few provisions on disclosure of personal information, cognizance of offences and use of the Aadhaar ecosystem by private corporations. Hence, statement 2 is correct.

Insurance regulator IRDAI has advised insurers not to seek Aadhaar for KYC (Know Your Customer) mandatorily purposes. The insurers can accept Aadhaar as one of the documents for KYC, only when the same is offered voluntarily by the proposer/policy maker. Hence, statement 3 is wrong.

In a landmark Judgement, the Supreme Court said that Aadhaar for welfare schemes was a "legitimate" exercise. The Court also defined welfare schemes as only those funded directly from the "Consolidated Fund of India". Hence, statement 4 is correct. Therefore the correct answer is option (b).

85. Consider the following statements :

1. Aadhaar card can be used as a proof of citizenship or domicile.
2. Once issued, Aadhaar number cannot be deactivated or omitted by the Issuing Authority.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre.) 2018

Ans. (d)

* Aadhaar number is a 12 digit random number issued by the UIDAI to the residents of India after satisfying the verification process. Any individual, irrespective of age, gender, who is resident of India, may voluntarily enrol to obtain Aadhaar number. Person willing to enroll has to provide minimal demographic and biometric information during the enrolment process which is totally free of cost.

* According to Section 9 of Aadhaar Act, 2016, the Aadhaar card is only proof of identity and cannot be used as proof of citizenship or domicile.

* According to Section 23(g) once issued, the Aadhaar number can be deactivated or omitted by the issuing authority.

86. Match the following provisions of the Information Technology Act, 2000 regarding e-governance :

- | | |
|--|-----------------|
| (a) Legal recognition of records | (i) Section 5 |
| (b) Legal recognition of electronic signatures | (ii) Section 4 |
| (c) Use of electronic records and Electronic signatures in government and its agencies | (iii) Section 8 |

(d) Publication of rules, regulations, (iv) Section 6 etc. In the electronic gazette

Codes :

- | (a) | (b) | (c) | (d) |
|-----------|-------|-------|-------|
| (a) (i) | (ii) | (iii) | (iv) |
| (b) (ii) | (i) | (iv) | (iii) |
| (c) (iii) | (iv) | (ii) | (i) |
| (d) (iv) | (iii) | (i) | (ii) |

Chhattisgarh P.C.S. (Pre) 2022

Ans. (b)

The correct matches of the provisions with the related sections are as follows :

- | | |
|--|-----------------|
| (a) Legal recognition of records | (i) Section 5 |
| (b) Legal recognition of electronic signatures | (ii) Section 4 |
| (c) Use of electronic records and Electronic signatures in government and its agencies | (iii) Section 8 |
| (d) Publication of rules, regulations, etc. In the electronic gazette | (iv) Section 6 |

87. Consider the following statements :

1. As per the Right to Education (RTE) Act, to be eligible for appointment as a teacher in a State, a person would be required to possess the minimum qualification laid down by the concerned State Council of Teacher Education.
2. As per the RTE Act, for teaching primary classes, a candidate is required to pass a Teacher Eligibility Test conducted in accordance with the National Council of Teacher Education guidelines.;
3. In India, more than 90% of teacher education institutions are directly under the State Governments.

Which of the statements given above is/are correct?

- | | |
|-------------|------------|
| (a) 1 and 2 | (b) 2 only |
| (c) 1 and 3 | (d) 3 only |

I.A.S. (Pre.) 2018

Ans. (b)

According to Section 23(1) of the RTE Act, 2009, any person possessing such minimum qualifications as laid down by an academic authority, authorised by the Central Government by notification, shall be eligible for appointment, as a teacher."

* As per the RTE Act, for teaching Primary classes, a candidate is required to pass a Teacher Eligibility Test conducted in accordance with the National Council of Teacher Education guidelines.

88. Under which law, the State Food Commission is established?

- | |
|--------------------------------------|
| (a) National Food Security Act, 2013 |
| (b) National Food Security Act, 2019 |
| (c) National Food Security Act, 2020 |
| (d) None of the above |

M.P.P.C.S. (Pre) 2020

Ans. (a)

Under section 16 of the National Food Security Act, 2013, State Food Commission is established.

89. With reference to consumers rights/privileges under the provisions of law in India, which of the following statement(s) is/are correct?

1. Consumers are empowered to take samples for food testing.
2. When a consumer files a complaint in any Consumer Forum, no fee is required to be paid.
3. In the case of death of a consumer, his/her legal heir can file a complaint in the Consumer Forum on his/her behalf.

Select the correct answer using the code given below

- | | |
|------------------|------------------|
| (a) Only 1 | (b) Only 2 and 3 |
| (c) Only 1 and 3 | (d) 1, 2 and 3 |

I.A.S. (Pre) 2012

Ans. (c)

In 1986, the Government of India passed the Consumer Protection Act, 1986 to protect the consumer rights. Under this Act, the consumers are empowered to take samples for food testing. A consumer can file his complaint in the Consumer Forum on any malfunction or failure of the product. He has to pay a small fee for that. In the case of the death of a consumer, his/her legal heir can file a complaint in the Consumer Forum on his/her behalf. The Consumer Protection Act, 2019, which received the President's assent on 9 August, 2019 has replaced the Consumer Protection Act, 1986.

90. With reference to the Consumer Disputes Redressal at the district level in India, which one of the following statements is not correct?

- | |
|---|
| (a) The District Forum entertains the complaints where the value of goods or services does not exceed rupees fifty lakhs. |
| (b) The State Government can establish more than one District Forum in a district if it deems fit. |
| (c) One of the members of the District Forum shall be a woman. |